

Sheet 1

AGREEMENT FOR UNMETERED ELECTRIC SERVICE TO WI-FI DEVICES ATTACHED
TO SOUTHERN CALIFORNIA EDISON (SCE)-OWNED STREETLIGHT FACILITIES

Form 14-764

(To be inserted by utility)

Advice 2127-E-A

Decision _____

Issued By

Akbar Jazayeri

Vice President

(To be inserted by Cal. PUC)

Date Submitted Sep 24, 2007

Effective Sep 24, 2007

Resolution E-4107, E-4120

Agreement for Unmetered Electric Service to Wi-Fi Devices Attached to Southern California Edison (SCE)-Owned Streetlight Facilities

This Agreement for Unmetered Electric Service to Wi-Fi Devices Attached to Southern California Edison (SCE)-Owned Street Light Facilities (Agreement) between _____ (Customer) and Southern California Edison Company (Company) is to establish and govern the provisions of unmetered electric service provided by the Company at the locations reported for wireless Internet communication equipment described in the attachments to this Agreement.

- A. WHEREAS, the California Public Utilities Commission (CPUC) has authorized the Wireless Fidelity Rate for SCE-Owned Streetlights, allowing for service to attachments of Wi-Fi transmitting equipment (devices) on SCE-owned streetlight facilities, as set forth in SCE's Schedule Wi-Fi-1, which is attached hereto as Attachment A and incorporated herein by this reference; and
- B. WHEREAS, the CPUC has authorized service to the cities, counties and qualified commercial providers of Wireless (Wi-Fi) Internet Service (customers) in the communities they serve; and
- C. WHEREAS, such equipment will be owned, operated, installed, maintained, and/or removed by Customer in accordance to SCE operational standards and regulations; and
- D. WHEREAS, notwithstanding the Company's Electric Preliminary Statement Part E.1, Customer and the Company agree that, in lieu of installing meters at each location, the Company shall provide unmetered electric service for Customer's equipment in accordance with the following terms and conditions.

NOW, THEREFORE, in consideration of the terms, and covenants contained herein, Customer and Company hereby agree as follows:

- 1. Subject to Schedule Wi-Fi-1. Customer shall be subject to all applicable tariff rules and regulations (which rules and regulations are hereby incorporated herein as an integral part of this Agreement), including, but not limited to, the rates, terms and conditions set forth in Schedule Wi-Fi-1, as such rules and regulations may be amended from time to time. If the CPUC approves any modification to Schedule Wi-Fi-1, any such modification shall be incorporated herein and this Agreement will continue in full force and effect as to Schedule Wi-Fi-1 as so modified, unless and until the Parties execute a new agreement, or unless and until SCE or Customer terminates this Agreement.
- 2. Credit Requirements. Customer's creditworthiness and financial condition shall at all times meet or exceed the requirements set forth in Schedule Wi-Fi-1. Any failure to meet such standards shall be an Event of Default.
- 3. Customer Equipment. Customer's equipment that is the subject of this Agreement is identified in the data sheets set forth in Attachment B (Equipment). Customer shall provide the Company with the Manufacturer's documentation on Equipment rating, documented average consumption and other information necessary for the Company to determine applicability of this Agreement prior to installation of Equipment. Attachment B documents the specific Equipment and the kilowatt hours (kWh) to be billed for each Equipment type.
- 4. Interference testing: Radio equipment that operates in unlicensed spectrum has the potential to interfere with existing and future utility applications and equipment. Therefore, SCE reserves the right to require that equipment be tested by SCE or by an independent third party satisfactory to both SCE and the WiFi provider/customer, at the WiFi provider's/customer's expense prior to obtaining service under this schedule.
- 5. Wi-Fi Service Grouping. All services to customer equipment in a city or unincorporated area of a county are grouped in a specific account for proper billing and accounting. The energy account will be billed on the Company's regular monthly billing cycle for unmetered service.

6. Energy Usage. Energy use for each piece of Equipment will be billed on Schedule Wi-Fi-1. Devices of up to a maximum of 35 watts will be charged a fixed energy charge based on an assumed monthly consumption of 25 kWh.
7. Customer Inventory. Customer shall furnish the Company with information, in a format acceptable to the Company, which verifies the number and locations of all Equipment in each city reflecting the net result of any installations and removals. The information to be reported is described in Attachment C. The information shall be provided initially ten (10) days after the first month of installations and on the first business day of January, April, July and October thereafter. Equipment ownership shall be identifiable from the ground for auditing purposes. The Company may require that Customer affix or install a Radio Frequency Identification Device (RFID), provided by the Company, for inventory verification purposes.
8. Connected Load Inaccuracies. If it is determined by the Company that electrical load is connected that has been under reported to the Company by Customer, such load will be billed in accordance with SCE's Rule 17 as applicable, and Customer shall pay the full applicable tariff charges for such electrical load. The Company reserves the right to field or bench test Equipment to verify the inputs described in documentation provided in Attachment B. Customer shall be financially responsible for any damage to Company facilities that results from a failure to accurately report Customer's loads and shall be responsible for costs incurred for testing.
9. Auditing. Auditing may be conducted at the Company's sole discretion. An audit may be conducted by the Company or by an independent auditor selected by the Company. The Customer may be responsible for the cost of the audit, if audit findings determine inventory inaccuracies. Customer shall provide access to the Equipment and assist the Company and its auditor to accomplish the audit, including, without limitation, identifying, locating and accessing the Equipment. If inventory inaccuracies are discovered, the Company shall have the right to collect all costs associated with any additional work, including but not limited to, field verification, bench testing, field amp reads, calculations of loads that would not be incurred in serving metered facilities.
10. Third Party Authorization. Neither this Agreement nor conditions of electric service hereunder shall constitute permission or authorization for any use or occupation of the facilities of the Company or any third party by Customer.
11. License or Pole Use Agreement. Neither this Agreement nor conditions of electric service hereunder shall constitute permission or authorization for any use or occupation of the facilities of the Company or any third party by Customer. Prior to any attachment to SCE-owned, dedicated street light poles or connection of Equipment to Company owned street light facilities a license or pole use agreements shall remain a condition of service hereunder. License or pole use agreements are governed under the provisions of CPUC General Order 69-C.
12. Right of Way. It shall be sole responsibility and obligation of Customer to secure any rights or permission that may be necessary for the placement and use of Customer's Equipment on or over private property or the public right of way.
13. Company & Regulatory Standards. The Equipment subject to this Agreement shall be installed, maintained and operated at all times in accordance with all Company design standards and requirements and with all applicable laws, rules and regulations by any governmental authority with jurisdiction, including Commission's General Order 95 (collectively "Laws"). Customer shall be responsible to correct all identified violations of Laws and all identified deviations from Company design standards or requirements. Where the Company makes corrections, Customer shall be responsible for all costs for the Company to remedy any notices of violation or infractions imposed on the Company as a result of the Customer's installation or operation of the Equipment, including, without limitation, any infractions under the Commission's General Order 95. Except when otherwise required by

the Laws or in the event that the Company determines that the violation, deviation or infraction caused by the Equipment poses a threat to the public or utility worker(s) or that the installed Equipment adversely impacts service reliability, asset life or the safe operation of Company facilities, prior to the Company remedying such violation, deviation or infraction, the Company will give the Customer written notice and the opportunity to remedy the same. If the Customer fails to correct the violation, deviation or infraction within thirty (30) days of such notice, the Company may, but shall not be obligated to, remedy such violation, deviation or infraction.

14. Equipment/Load Changes. Where the Company determines that the Equipment loads require changes to Company's serving facilities, or where rearrangements are required as a result of the added loads, all such modifications must be performed prior to connection of the Equipment and Customer shall be responsible for all costs associated with the work. Customer shall be financially responsible for any damage to Company facilities resulting from Equipment loads added prior to completion of any required work. Either the Company or Customer may determine that facility modifications are not practical or cost effective for specific locations, in which case the Customer shall remove their equipment and Wi-Fi service shall be discontinued for that specific location.
15. Termination of Agreement. This Agreement shall remain in effect until terminated. This Agreement may be terminated upon thirty (30) days prior written notice and the completion of the removal of customer equipment: a) by either party, which shall result in termination of service; or b) by Company upon Customer's default of any of the stated terms, agreements, covenants, conditions and provisions of this Agreement, the license or pole use agreement for such equipment or nonconformance with Company's other applicable tariffs. Any notice for termination of this Agreement for default shall specify the nature of the default. Customer may utilize the thirty (30) days from issuance of such notice to cure the specified default (or in the event of a default which requires in excess of thirty (30) days to cure, such additional time as is approved in writing by the Company). Timely cure of a specified default will avoid termination for that default. Customer expressly acknowledges that the Company shall not be liable for any costs, expenses, damages, claims or the like caused by or arising out of the Company's termination of this Agreement, including but not limited to any rearrangement, relocation, removal or disconnection expenses. Company may continue to provide service to Customer's Equipment provided that a subsequent executed superseding agreement governing the terms of unmetered service has gone into effect prior to the termination of this Agreement.
16. Commission Requests. Nothing in this Agreement shall preclude the Company from requesting authority from the Commission to implement an electric tariff for unmetered service. If an unmetered electric service tariff is approved for the Company, it shall apply to Customer's installations under this Agreement.
17. Modification of Forms. The Company is authorized to modify the form of Attachment B and C at its sole discretion and at any time require additional reasonable information from Customer for the purpose of this Agreement, including without limitation, accurate data concerning equipment, maintaining accurate records, and promoting accurate and efficient billing.
18. Written Notification. All notices required herein shall be given in writing and delivered personally by United States Postal Service, or other nationally recognized courier service, to the appropriate address below. Addresses may be changed by the Company or Customer as business needs change.

Customer: _____
Address: _____
Attn: Installation Services Management Organization

Customer's bill shall be mailed to the address listed below.

Billing Name: _____
Address: _____
Attn: _____

19. Waivers. The waiver by either Party of any default in the performance, or failure to insist on strict performance by the other, or any covenant or condition contained herein shall not be construed to be a waiver of any preceding or subsequent default of the same or any other covenant contained herein.
20. Additional Equipment. If Customer acquires additional Equipment (connected by another Customer under the provisions of an identical Agreement) through merger, purchase, or other forms of acquisition, all such acquired Equipment shall become subject to this Agreement, and billing will be adjusted as required by this Agreement. Customer must provide the information necessary to complete new Attachment B(s), if such additional unmetered facilities have not previously been identified to the Company. Customer must also provide the information required to complete new or modify existing Attachment C(s).
21. Assignment of Agreement. Customer shall not assign this Agreement except upon the prior written consent of SCE.
22. Equipment Disconnection upon Termination. Upon termination of this Agreement, Customer shall promptly disconnect Customer's Equipment from the street light facilities. Customer remains responsible for payment of energy and customer charges under this Agreement until Equipment is disconnected.
23. Confidentiality. Customer shall not disclose any Confidential Information obtained pursuant to this Agreement to any third party, including any affiliates of Customer, without the express prior written consent of SCE. As used herein, the term "Confidential Information" means proprietary business, financial and commercial information pertaining to SCE, customer names and other information related to customers, including energy usage data ("Customer Information"), any trade secrets and any other information of a similar nature, whether or not reduced to writing or other tangible form. Confidential Information shall not include: (a) information known to Customer prior to obtaining the same from SCE; (b) information in the public domain at the time of disclosure by Customer; (c) information obtained by Customer from a third party who did not receive the same, directly or indirectly, from SCE; or (d) information approved for release by express prior written consent of an authorized representative of SCE.
24. Indemnification of SCE. To the fullest extent permitted by law, Customer shall indemnify, defend and hold harmless SCE, and its parent company, subsidiaries, affiliates and each of their respective shareholders, officers, directors, employees, agents, representatives, successors and assigns (collectively, the "Indemnified Parties"), from and against any and all claims, actions, suits, proceedings, losses, liabilities, penalties, fines, damages, costs or expenses, including without limitation reasonable attorneys' fees (a "Claim"), resulting from (a) any breach of the representations, warranties, covenants and obligations of Customer under this Agreement, (b) any act or omission of Customer, whether based upon Customer's negligence, strict liability or otherwise, in connection with the performance of this Agreement, or (c) any third party claims of any kind, whether based upon negligence, strict liability or otherwise, arising out of or connected in any way to Customer's performance or nonperformance under this Agreement. This indemnification obligation shall not apply to the extent that such injury, loss or damage is caused by SCE's sole negligence.
25. Defense of Claim. If any Claim is brought against the Indemnified Parties, Customer shall assume the defense of such Claim, with counsel reasonably acceptable to the Indemnified Parties, unless in the opinion of counsel for the Indemnified Parties a conflict of interest between the Indemnified Parties and Customer may exist with respect to such Claim. If a conflict precludes Customer from assuming the defense, then Customer shall reimburse the Indemnified Parties on a monthly basis for the Indemnified Parties' defense costs through separate counsel of the Indemnified Parties' choice. If Customer assumes the defense of the Indemnified Parties with acceptable counsel, the Indemnified Parties, at their sole option and expense, may participate in the defense with counsel of their own choice without relieving Customer of any of its obligations hereunder.
26. Survival. Customer's obligation to indemnify the Indemnified Parties shall survive the expiration or termination of this Agreement.
27. Supersede. This Agreement shall supersede existing letters of understanding, agreements and contracts, whether verbal or written, for the provision of unmetered services to the Equipment.

APPROVED

Customer:

Southern California Edison Company

Title:

Title:

Name (Print):

Name (Print):

Signature:

Signature:

Date:

Date: